

A.3.6

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A.3.6: Employment Break Policy Documents



Compassion



Accountability



Respect



Integrity



Courage

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Appendix

1. Application for Career Break

1. Introduction

This policy details the employment break scheme for employees of Kettering General Hospital NHS Foundation Trust.

It shall be for individual departments to make decisions on agreeing breaks according to management discretion and business need.

A career break, in general terms, allows a member of staff to take an unpaid break from work for a specified length of time for such purposes childcare, eldercare, care for another dependant, training, study leave or work abroad.

The provisions of this policy are available to all employees with a minimum of 12 months continuous service with the Trust.

This policy should be read in conjunction with the following Trust policies:

- Special Leave policy (A.3.3)
- Medical Staff Leave policy (A.3.9)
- Secondment Policy (A.16)
- Annual Leave policy (A.3.1)
- Flexible Working policy (A.10)
- Additional Annual Leave Purchase Scheme (A.3.8)
- Retirement policy (A.5)
- Leave in Relation to Starting a Family Policy (UHN-PO-HR10)
- Grievance policy (B2)

Other reasons for a career break will be considered on their merits and will be at the discretion of the manager and in light of the Division's circumstances.

Possible alternatives to the career break scheme include:

- Special leave for domestic, personal and family reasons
- Parental leave
- Part-time working overall or a proportion of, the same period. A variation on this theme is a job share arrangement.
- Re-entry scheme in which the Trust contacts ex-employees and offers them refresher training to assist their return to work.
- Staff bank
- Requests for flexible working will be considered as per HR policy Flexible Working (A10).

2. Purpose

This policy aims to provide a process for which employees of the Trust may submit an application to their line manager to undertake an employment break as per the terms of this policy. It is at the discretion of the line manager as to whether the request can be accommodated depending on service need.

The scheme is designed to enable employees to balance both work with their other commitments and responsibilities and should also enable the Trust to attract and retain the experience of staff consistent with the NHS commitment to the provision of high quality healthcare.

This procedure must be applied fairly, consistently and equitably by line managers. Care must be taken to avoid a subjective selective approach with consequent risk of grievances or complaints.

Employment break arrangements must meet certain minimum standards and these are detailed in section 1.

3. Responsibilities

Responsibilities of Line Managers:

- After discussion between the member of staff and manager the manager should complete Part 2 of the application form.
- Each line manager will respond to requests from staff. However, each case will be considered on individual merit and in light of the Divisions circumstances and business needs.
- Where the career break scheme applies the line manager will be responsible for arranging and approving career breaks for staff with prior consultation within their Division and with Human Resources and making relevant training arrangements for re-induction to work.
- In considering a request for a career break, the manager will be required to balance the needs of the applicant with the needs of the service.
- Ensure effective communication with employees on career breaks by such as personal contact, newsletters or similar.
- Arrange a minimum number of days paid work each year, if applicable.
- Arrange appropriate refresher training.
- Ensure the attendance of the employee at appropriate seminars/key departmental and/or professional meetings.
- All records of applications and decisions should be kept for a minimum of twelve months.
- To ensure own familiarity with the policy and procedures.
- To ensure that all requests for career breaks are dealt with in a fair and consistent manner and are appropriately documented and recorded.
- To treat any concerns raised within the scope of this policy seriously, confidentially and sensitively.
- To seek advice from HR on matters related to granting career breaks.
- To undertake training and maintain own competency necessary for effectively carrying out this policy.

Responsibilities of Human Resources:

- To provide training and professional advice on the application of this policy.

- Assist managers in promoting the highest possible standards in managing requests for employment breaks.
- Provide advice and guidance to managers and staff, balancing the needs of individual employees and the need for excellence in service delivery.
- Treat all matters related to career break requests with impartiality and confidentiality.

Responsibilities of All Employees:

- Members of staff should complete Part 1 of the application form (Appendix 1) prior to discussion with their manager.
- To ensure own familiarity with the policy and procedure.
- To adhere to the standards of behaviour and conduct required by the Trust and with that of the KGH Promise.
- To adhere to the requirements and purpose of this policy and procedure.
- To bring any matters of concern connected with the application or conduct of this policy to the attention of their line manager or other senior manager as appropriate.

4. Definitions

Career break

Career breaks are prolonged periods of unpaid leave from work.

Medical Sabbatical

A period of extended leave, usually unpaid, to allow an employee to develop their career or pursue a topic of special interest.

5. Processes and Procedures

The maximum career break should be 5 years which can be taken over 2 separate occasions provided that these are separated by a return to work of at least 12 months. It is anticipated that career breaks of less than three months duration will not prove suitable for inclusion in the career break scheme.

Acceptable reasons for career breaks include:

- Carer Responsibilities
- To address personal or domestic problems
- Further education, study or training
- Travel
- Work overseas or charitable work, which will broaden the employee's experience.

A Medical Sabbatical is a period of extended leave, usually unpaid, to allow an employee to develop their career or pursue a topic of special interest.

Any proposal for a Medical sabbatical should be made before the annual appraisal and considered in the annual Job Plan review. Approval will only be given subject to the needs of the service and providing that enough notice is given. In most cases sabbaticals can be covered by additional professional leave. All leave must be authorised by the appropriate Clinical Director, Chief of Division/ Divisional Director and Medical Director (Decision Making Group). The application for Medical Staff is included in Appendix C of the Medical Staff Leave Policy.

Employees on career breaks will not be able to take up paid employment or benefit from financial gain with another employer except where you will be:

- Working overseas to fund further travel
- Charitable work, to pay for travel food and accommodation expenses
- Medical sabbatical to pursue a topic of special interest

It is essential, in these circumstances, to receive written authorisation from the Director of People to be paid for work overseas and charitable work or the Medical Decision-Making Group for medical sabbaticals in line with the Medical Staff Leave Policy.

This policy is not intended to facilitate working abroad and such circumstances will be considered as a voluntary resignation. This policy will not facilitate a temporary promotion and in such cases it needs to be considered if a secondment is more appropriate in line with the Secondment Policy, otherwise will be considered as a voluntary resignation.

The employee must submit their request in writing, on the form included at Appendix A, at least 2 months before the expected start date of the career break if the break is less than 12 months and 6 months' notice if the break is for more than 12 months.

An individual may apply for a career break immediately after a period of Maternity/Adoption leave. However, if they do not return to the Trust's employment for a period of at least three months they will be liable to repay some Maternity/Adoption pay in accordance with the relevant Trust policy.

Individuals are free to apply for a post of a higher grade during a career break. However, if successful they will be required to terminate their career break, accept the promotion at the time of the offer and commence employment once the usual pre-employment checks have been completed.

6. Entitlements Whilst On Career Break

A career break will constitute continuous NHS employment for statutory purposes.

There is no entitlement to annual leave, occupational sick pay and other discretionary entitlements whilst on career break.

Other provisions, that are dependent on length of service should be suspended for the period of the break i.e. contractual redundancy payments, leave entitlements.

7. Maintaining Contact With The Trust During a Career Break

Contact with the Trust / line manager must be maintained throughout the break.

There will be a requirement from staff to annually recommit to the career break scheme. The appropriate notice period must be given by the member of staff in writing of their wish to return to work (see Appendix A).

The exact details of maintaining contact during the career break may vary depending upon the type of post and its responsibilities. The aim should be to ensure that the member of staff is adequately updated whilst avoiding excessive and unreasonable demands upon their time.

The specific details of the expectations for maintaining contact should be agreed between the employee and their line manager prior to an agreement being put in place under this scheme, and may included:

- to undertake a minimum number of days paid work each year at a mutually agreed time;
- to attend a minimum number of seminars/key departmental/ and/or professional meetings per annum;
- to maintain membership of appropriate professional bodies and subscription(s) to appropriate professional journals;
- to attend appropriate refresher training events.

8. Returning To Work Following a Career Break

Employees must submit their intention to return to work as follows;

- Employment break of less than 12 months - 2 months before the return date
- Employment break of more than 12 months - 6 months before the return date

All employees returning to work following a career break will be required to undergo the appropriate pre-employment checks in accordance with the Trust's pre-employment Occupational Health, disclosure/vetting & barring policies and with NHS rules on recruitment checks as set out in the Trust Recruitment & Selection Policy. The employee will also be required to complete induction and mandatory training.

Where a career break has been granted to allow an individual to undertake further/higher education, they should not expect to automatically return to a higher graded post. Normal recruitment procedures will apply.

Where a career break is taken for a period of one year or less then the same job will be available as far as is reasonably practicable. Where duration of the career break is greater than a year the employee is entitled to return to either the same job or, if this is not practicable, a similar job which has the same or better status, terms and conditions as the previous position.

Preferential consideration for suitable vacancies shall be assured, although due to organisational change, job redesign or department/ward re-structuring there may be occasions where the Trust is unable to offer the person the opportunity to return to the same/similar job to the one they left. In such cases the Trust Staff Affected by Organisational Change policy shall apply.

9. Suitable Alternative Employment

In circumstances where the Trust is unable to offer the person the opportunity to return to the same/similar job to the one they left, Managers will consult with the individual and the HR Department at the earliest opportunity to discuss any reasonable alternative job opportunities that may be available relevant to the individual's knowledge, skills and experience. This process will be in line the Trust's redeployment process.

In the event that the Line manager is able to offer an alternative post, the details of this will be discussed with the individual. If they decline the offer, the line manager in conjunction with a HR representative may explore other job opportunities with the individual where these are available. However where having discussed reasonable offers of alternative employment, the individual declines those offers, they will be invited to attend a formal meeting to discuss the situation and if appropriate they will be notified that their career break will cease and their service with the Trust will be terminated. A right of appeal will be provided in such circumstances with the process for appeals to be followed as per the Trust's Disciplinary policy.

10. Financial Implications

The following is intended to provide information for employees to consider when considering applying for a career break. It is not an exhaustive list and employees are encouraged to seek further advice relating to financial matters as appropriate.

10.1 NHS Pension Scheme Members

Individuals who propose to take a career break should contact the Payroll department/NHS Pensions to discuss their NHS pension position and possible implications for this. Trust employees are not permitted to provide pensions advice.

NHS Pension Scheme members who commenced a period of authorised leave on or after 1.4.2008 can choose to remain pensionable for a period of up to 24 months. The employee will be liable for all employee contributions for the full period of leave together with Employer's Contributions Liability after 6 months, if the employee chooses to continue to pension the leave for a further 18 months after the initial 6 month period.

Before the leave begins, the Trust must make arrangements with the member to collect the necessary pension contributions prior to the 19th day of each month following that which earnings would have been made.

It will be the individual's responsibility to identify and arrange any State benefit payments due to them whilst on a break, through the Department of Work & Pensions.

10.2 National Insurance Contributions

Staff have the option during a career break of continuing to pay contributions by paying them directly to the Department of Social Security. Alternatively, they can sign on as unemployed with the Job Centre and will be credited with National Insurance contributions by the Department of Employment.

10.3 Benefits

Staff are not entitled to any contracted benefits, e.g., annual leave, sick pay, bank holidays or time owing during the career break.

10.4 Professional Registration

Staff shall remain responsible for retaining their registration and may, therefore, incur relevant costs either in fees or attending necessary courses. Any failure to maintain professional registration will be dealt with through the Trust's Professional Registration and Disciplinary Policy.

10.5 Incremental Dates

Incremental dates will be deferred by the number of months not worked in a particular year. If an individual is absent on a break for a full year his/her existing incremental date will be retained.

Increments will not be paid for the period of absence. However, periods of paid employment with the Trust during the break will count as “reckonable” service for the purpose of calculating the incremental date.

11. Return To Work Arrangements

A return-to-work meeting will be arranged by the line manager to Include: the line manager, employee and a representative of the HR department prior to the return-to-work date. In career breaks of 6 months or more, this meeting will take place at least 6 weeks prior to the return-to-work date or with as much notice as is practicable in the circumstances. The purpose of this meeting will be to organise the return to work including any required re-entry training, workload handover, medical assessment and employment checks.

Clinical staff and staff in any post which requires a full pre-employment check will be required to undertake a full medical examination with the Trust’s Occupational Health Department along with any appropriate assessments and update training as required/appropriate in accordance with Clinical Education Team’s requirements / recommendations and as defined in the Person Specification.

Employees who do not satisfactorily complete agreed re-entry Training/assessments will be subject to the provisions of the Trust’s Capability Policy.

Any request from an employee who wishes to return to work prematurely will be reviewed, taking into account the reason(s) for such, the exigencies of the Service and the need to be fair and equitable in the treatment of any temporary replacement.

Similarly, any request from an applicant who wishes to extend their break will be reviewed, taking into account the reason(s) for such and the exigencies of the Service.

Any individual not returning to work at the agreed end date of the Career break without reasonable cause/notification will be deemed in breach of their contract of employment and as such will be subject to the provisions of the Trust’s Disciplinary Policy.

12. Appeals

Applicants will be entitled to a written reason from the line manager for the refusal of any application.

Applicants may consider using the Trust grievance procedure if a request for a break is refused.

13. Training

There is an expectation that all employees of the Trust are responsible for ensuring their own individual awareness of this policy. However briefing sessions for managers and staff will be made available as necessary.

14. Monitoring Compliance with the Document

Monitoring Compliance					
Process to be used for monitoring e.g. audit	Responsible individual / committee for carrying out monitoring	Frequency of monitoring	Responsible individual / committee for review the results	Responsible individual / committee for developing action plan	Responsible individual / committee for monitoring action plan
Volume of applications, agreement and refusals given	Head of People Partnering	Quarterly	JCNC	Head of People Partnering	People Committee

15. References

NHS Terms and Conditions Handbook, Employment Break Scheme (section 36)

Appendix 1

APPLICATION FOR CAREER BREAK SCHEME

PART 1

Employee to complete:

1. Employee Details:

Name:

Band:

Hours per week:

Job title:

Dept/Ward:

Manager:

Date of request:

2. Length of time required for career break: _____ years (minimum 3 months, maximum 5 years) from: _____ to _____ (approx.) 3.

3. Reason for requesting career break:

4. Declaration:

I _____ understand that should my application be approved that I will be expected to adhere to the provisions of the Trust Career Break policy.

Provisions, depending on length of service, i.e. pensions, contractual redundancy payments, leave entitlements, will be suspended for the period of the break.

5. I understand I must put in writing my intention to return to work 2 months before the return date if the break is less than 6 months and 6 months notice if the break is for more than a year, and that every effort will be made to re-employ me in a similar post on my original grade, but that this cannot be guaranteed.

Signed: _____

Date: _____ (Employee)

Send this completed form to your manager

PART 2

For Line Manager to complete:

I have carefully considered this application for a career break taking into account service needs and individual needs and have *approved/*not approved the application on the following grounds:

For approved applications only:

I have agreed that the career break dates will be from:

_____ to _____

I will ensure that the provisions of the policy are adhered to during the career break and that every effort will be made to re-employ_____

(employee) in a similar post at the original grade on conclusion of the career break.

Signed: _____

Date: _____

Manager: _____